Oregon Department of Early Learning and Care

Rules for

REGISTERED FAMILY CHILD CARE HOMES

and

General Rules for

ALL CHILD CARE FACILITIES

Department of Early Learning and Care
Child Care Licensing Division
www.oregon.gov/DELC
1-800-556-6616
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Department of Early Learning and Care
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Rules for Registered Family Child Care Homes, Division 205
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And

General Rules for Child Care Facilities, Division 075
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Table of Contents

Rules for Registered Family Homes 6
414-205-0000 Purpose 6
414-205-0010 Definitions 7
414-205-0020 Application for Registration 10
414-205-0035 General Requirements 11
414-205-0040 The Provider and Other Persons in the Home 13
414-205-0055 Training Requirements 15
414-205-0065 Children in Care 17
414-205-0075 Supervision of Children 17
414-205-0085 Guidance and Discipline 18
414-205-0090 Program of Activities 18
414-205-0100 Health 20
414-205-0105 Testing for Lead in Drinking Water 24
414-205-0110 Safety 26
414-205-0120 Sanitation 30
414-205-0130 Record Keeping 32
414-205-0140 Night Care 33
414-205-0150 Exceptions to Rules 33
414-205-0160 Complaints 34
414-205-0170 Suspension, Denial, Revocation, Findings Reviews and Civil Penalties 34
General Rules for All Child Care Facilities 39
414-075-0000 Applicability of Rules 39
414-075-0010 Definitions 40
414-075-0130 Complaints and Investigations 44
414-075-0230 Exempt Prohibition, Unlawful Care, Civil Penalties 47
414-075-0250 Operating Hours and Care Not Requiring a License 49
414-075-0300 Union Representation in Contested Case Hearings 51

Oregon Department of Early Learning and Care

Rules for

REGISTERED FAMILY CHILD CARE HOMES

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DEPARTMENT OF EARLY LEARNING AND CARE
Chapter 414, Division 205
Child Care Licensing Division

Rules for Registered Family Homes

414-205-0000 Purpose

(1) Oregon Administrative Rules (OAR) 414-205-0000 through 414-205-0170 are the Child Care Licensing Division 's (CCLD) minimum requirements for registering family child care providers. The purpose of these rules is to protect the health, safety, and well-being of children when cared for outside their own homes.

(2) Registration is required for persons who provide child care:

(a) On other than an occasional basis; and

(b) To more than three children from more than one family at any one time, other than the person's children subject to the limits in OAR 414-205-0065.

(3) Individuals who are not enrolled in the Central Background Registry because of removal, denial for cause, or voluntary surrender in lieu of legal action, may only care for their own children or children related within the fourth degree as determined by civil law, pursuant to ORS 329A.252.

(4) These rules do not apply to care provided:

(a) In the home of the child;

(b) To three or fewer children, not including the provider's children subject to the limits in OAR 414-205-0065 except as provided in 414-205-0000(3);

(c) To children from one family, not including the provider's children except as provided in 414-205-0000(3);

(d) On an occasional basis by a person not ordinarily engaged in providing child care except as provided in 414-205-0000(3);

(e) By the child's parent, legal guardian, or person acting in place of a parent;

(f) By a person related to the child care children by blood, marriage, or adoption; or

(g) By a person who is a member of the child's extended family, as determined by CCLD on a case-by-case basis or;

(h) By a person providing care for preschool children that is primarily educational for four hours or less per day and where no preschool age child is present at the facility for more than four hours per day, except as provided in 414-205-0000(3).

(5) Any family child care provider exempt from registration may apply for registration.

(6) These rules apply only during the hours the provider is conducting the child care business.

414-205-0010 Definitions

(1) "**Caregiver**" means any person, including the provider, who cares for the children in the registered family child care home and works directly with the children, providing care, supervision and guidance.

(2) "**Central Background Registry**" (CBR) means CCLD's Registry of individuals who have been approved to be associated with a child care facility in Oregon pursuant to ORS 329A.030 and OAR 414-061-0000 through 414-061-0120.

(a) "**CBR Enrollment**" means approval for a 5 year period to be enrolled in the CBR following an Oregon State Police criminal records check, child abuse and neglect records check, checks of adult protective services and foster care certification and an FBI records check.

(b) "**CBR Conditional Enrollment**" means temporary approval to be enrolled in the CBR following a Oregon State Police records check and child abuse and neglect records check but prior to receipt by CCLD of the results of the required FBI records check.

(3) "**Child Care**" means the care, supervision and guidance on a regular basis of a child, unaccompanied by a parent, legal guardian or custodian, during a part of the 24 hours of the day, with or without compensation.

(4) "**Child Care Child**" means a child at least six weeks of age and under 13 years of age, or a child under 18 years of age with special needs. The child does not reside in the home and the provider has supervisory responsibility for the child in the temporary absence of the parent.

(5) "**CCLD**" means the Child Care Licensing Division, Department of Early Learning and Care.

(6) "**Child with Special Needs**" means a child under 18 years of age who requires a level of care over and above the norm for their age due to a physical, developmental, behavioral, mental or medical disability.

(7) "**Civil Penalty**" means a fine imposed by CCLD on a provider for violation on these rules.

(8) "**Communicable Disease**" means an illness caused by an infectious agent or its toxins.

(9) "**DELC**" means the Department of Early Learning and Care.

(10) "Disinfecting" means using a process for destroying or irreversibly inactivating harmful organisms, including bacteria, viruses, germs and fungi.

(11) "**Family**" means a group of individuals related by blood, marriage or adoption, or individuals whose functional relationships are similar to those found in such associations.

(12) **"Infant**" means a child who is at least six weeks of age up to 12 months of age.

(13) "**Kindergarten-Age Child**" means a child eligible to attend kindergarten in a public school. A kindergarten-age child is considered a school-age child.

(14) "**New Application**" means a registration application that has been filed by an applicant who has never had an active registration.

(15) "**Night Care**" means care given to a child who sleeps at the family child care home for all or part of the night.

(16) "**Occasional**" means infrequently or intermittently, including but not limited to care that is provided during summer or other holiday breaks when children are not attending school, but not to exceed 70 calendar days in a year.

(17) "**Oregon Registry**" means the voluntary registry at the Oregon Center for Career Development in Childhood Care and Education at Portland State University that documents the training and education of individuals who work in childhood care and education.

(18) "**Outbreak of Communicable Disease**" means two cases from separate households associated with a suspected common source.

(19) "**Premises**" means the structure that is identified on the application, including indoors and outdoors and space not directly used for child care.

(20) "**Preschool-Age Child**" means a child who is 36 months of age up to eligible to attend kindergarten in a public school.

(21) "**Provider**" means a resident of the registered family child care home who is responsible for the children in care; is the children's primary caregiver; and the person whose name is on the certificate of registration.

(22) "**Registered Family Child Care Home**" means the residence of the provider, who has a current Family Child Care Registration at that address and who provides care in the family living quarters.

(23) "**Registration**" means the document a family child care provider is issued by CCLD to operate a family child care home where care is provided in the family living quarters of the provider's home pursuant to ORS 329A.330 and OAR 414-205-0000 through 414-205-0170. Registration is limited to one provider at one address.

(24) "**Renewal Application**" means a registration application that has been filed by a currently registered family child care provider who wishes to continue registration.

(25) "**Reopen Application**" means a registration application that has been filed by an applicant whose registration is expired or closed, including those closures resulting from an address change.

(26) "**Restrictable Disease**" means an illness or infection that would prohibit the child from attending child care.

(27) "**Sanitizing**" means using a treatment that provides enough heat or concentration of chemicals for enough time to reduce the bacterial count, including disease producing organisms, to a safe level on utensils, equipment and toys.

(28) "**School-Age Child**" means a child eligible to attend kindergarten or above in public school. This includes the months from the end of the prior school year to the start of the kindergarten school year.

(29) "**Serious Complaint**" means a complaint filed against:

(a) A registered family child care provider by a person who alleges that:

(A) Children are in imminent danger;

(B) There are more children in care than allowed by law;

(C) Provider is engaging in behavior prohibited under OAR 414-205-0085(6);

(D) Children are not being supervised;

(E) Multiple or serious fire, health or safety hazards are present in the home;

(F) Extreme unsanitary conditions are present in the home; or

(G) Adults are in the home who are not enrolled in CCLD's CBR; or

(b) An individual providing child care, as defined by ORS 329A.250(4), who is not a registered family child care provider by a person who has alleged that there are more children in care than allowed by law.

(30) "**Serious Injury or Incident**" means any of the following:

(a) Injury requiring surgery;

(b) Injury requiring admission to a hospital;

(c) Injury requiring emergency medical attention;

(d) Choking and unexpected breathing problems;

(e) Unconsciousness;

(f) Concussion;

(g) Poisoning;

(h) Medication overdose;

(i) Broken bone;

(j) Severe head or neck injury;

(k) Chemical contact in eyes, mouth, skin, inhalation or ingestion;

(l) All burns;

(m) Allergic reaction requiring administration of Epi-Pen;

(n) Severe bleeding or stitches;

(o) Shock or confused state;

(p) Near-drowning.

(31) "**Serious Violation**" means CCLD has made a valid finding when assessing a serious complaint that alleges:

(a) Children are in imminent danger;

(b) There are more children in care than allowed by law;

(c) Provider is engaging in behavior prohibited under OAR 414-205-0085(6);

(d) Children are not being supervised;

(e) Multiple or serious fire, health or safety hazards are present in the home;

(f) Extreme unsanitary conditions are present in the home; or

(g) Adults are in the home who are not enrolled in CCLD's CBR; or

(h) An individual is providing child care as defined by ORS 329A.250(4) without registering with the Child Care Licensing Division of the Oregon Department of Early Learning and Care.

(32) "**Substitute Provider**" means a person who acts as the children's primary caregiver in the registered family child care home in the temporary absence of the provider.

(33) "**Toddler**" means a child who is at least 12 months of age but is not preschool-age.

(a) "**Younger Toddler**" means a child who is at least 12 months of age but is under 24 months of age.

(b) "**Older toddler**" means a child who is at least 24 months of age but is not yet preschool-age.

(34) "**Unsupervised Access to Children**" means contact with children that provides the person opportunity for personal communication or touch when not under the direct supervision of a child care provider or staff with supervisory authority.

(35) "**Useable Exit**" means an unobstructed door or window through which the provider and the children can evacuate the home in case of a fire or emergency. Doors must be able to be opened from the inside without a key.

(a) For homes built before July 1, 2010, window openings must be at least 20 inches wide and at least 22 inches in height, with a net clear opening of five square feet (at least 720 square inches) and a sill no more than 48 inches above the floor.

(b) For homes built after July 1, 2010, window openings must be at least 20 inches wide and at least 24 inches in height, with a net clear opening of five square feet (at least 720 square inches) and a sill no more than 44 inches above the floor.

414-205-0020 Application for Registration

(1) The applicant must apply for registration on the form(s) supplied by CCLD. The original form(s) must be submitted to CCLD for processing.

(2) Persons submitting new applications must attend a family child care overview session prior to submitting their application to CCLD.

(3) Persons interested in submitting an application must meet the training requirements outlined in OAR 414-205-0055.

(4) An application for registration is required:

(a) For a new registration;

(b) For renewing a registration; and

(c) For reopening a registration.

(5) There is a non-refundable filing fee of $30 for each application. If the provider submits documentation that the provider's family income is below 100% of the Federal Poverty Level, the fee may be reduced.

(6) All civil penalties must be paid in full.

(7) To determine if requirements are met, the applicant/provider may be required to supply additional information or permit CCLD, a fire marshal, or a public health official to assess the home and/or review child care records.

(8) Providers must satisfactorily complete an on-site health and safety review conducted by CCLD prior to issuance of a new, renewal or reopen registration. The review will ensure that the provider is in compliance with the rules related to health, safety and sanitation.

(9) If an application for renewal is received by CCLD at least 30 days prior to the expiration date of the current registration, the current registration, unless officially revoked, remains in effect until CCLD has acted on the application for renewal and has given notice of the action taken.

414-205-0035 General Requirements

(1) The home in which child care is provided must be the residence of the provider.

(2) The provider may not hold a medical marijuana card, grow marijuana, or be a distributor of marijuana.

(3) Registration is limited to one provider per household.

(4) Registration applies to only the person and address on the certificate of registration and is not transferable to another location or individual.

(5) The registration is valid for a maximum of two years. The registration period begins with the effective date shown on the certificate of registration. A provider may not care for more than three (3) children, other than the provider's own children, at any one time prior to receiving a certificate of registration from CCLD.

(6) CCLD registration records are open to the public on request. However, information protected by state or federal law will not be disclosed.

(7) The name, address, telephone number, and registration status of providers is public information. However, CCLD may withhold from the public a provider's address and telephone number if the provider makes a written request documenting that disclosure of the address and/or telephone number would endanger him/her or a family member living in the home (OAR 137-004-0800). The request must be on a form supplied by CCLD.

(8) The provider shall display the following near the entrance, or in some other area of the home where they may be clearly viewed by parent(s) of children in care:

(a) The Certificate of Registration; and

(b) Providers must post all serious valid complaint and serious non-compliance letters for 12 calendar months.

(9) The provider shall display a floor plan identifying the locations of the following near the entrance, or in some other area of the home where they may be clearly viewed by all individuals responsible for evacuation procedures:

(a) Exits;

(b) Primary evacuation routes;

(c) Secondary evacuation routes; and

(d) Fire extinguishers.

(10) The provider shall have no other employment, either in or out of the home, during the hours children are in care.

(11) CCLD staff may conduct an unannounced monitoring visit at least once during the license period.

(12) The provider or substitute must allow a representative from the Child Care Licensing Division access to the premises any time child care children are present.

(13) The provider or substitute shall allow an inspection of all areas of the facility that are accessible to child care children, and a health and safety review of other areas of the facility to ensure the health and safety of child care children.

(14) The provider must allow parents or legal guardians of child care children access to the home during the hours their child(ren) are in care.

(15) The provider must comply with local, state and federal laws related to immunizations, child care restrictable diseases, child safety systems and seat belts in vehicles, bicycle safety, civil rights laws, and the Americans with Disabilities Act.

(16) Any caregiver who has reason to believe that any child has suffered abuse (physical injury, mental injury, neglect that leads to physical harm, sexual abuse and/or exploitation, or threat of harm) must report the information to the Department of Human Services Child Welfare (DHS) or to a law enforcement agency. By statute, this requirement applies 24 hours per day.

(17) The provider must notify parents if there will be a substitute provider and the caregiver's name. In the event of an emergency, a good faith effort will be made to notify parents that a substitute will be caring for the children.

(18) The provider must notify parents if the children will be away from the home for any part of the day for visits, field trips or any other activity off the premises and the name of the caregiver.

(19) If an applicant or a provider wishes to provide child foster care, the provider must receive approval from CCLD and DHS, prior to placement of the foster child(ren).

(20) Registered providers shall comply with all conditions placed on their license.

(21) Information provided to CCLD on applications, in records or reports, or any other written or verbal communication, shall be current, complete and accurate.

(22) Providers shall immediately notify all parents of any closure of the active license.

(23) Providers must have parent(s) or guardian(s) of each child enrolled in the registered family child care home, sign a declaration form approved by the Child Care Licensing Division verifying they have reviewed a copy of the current license certificate. The declaration shall be updated any time there has been an exception or condition added to the license.

(24) Providers must post the Department of Early Learning and Care Website [www.oregon.gov/delc] and phone number [1-800-556-6616], and a statement advising parents that they can access information about their child care provider on the child care safety portal.

(25) The provider shall report to CCLD:

(a) Any death of a child while in care, within 24 hours;

(b) Within 24 hours:

(A) Any child that is lost or missing from the premises;

(B) Any child that is left behind on a facility excursion;

(C) Any child that is left unattended on the premises;

(D) Any child that is left alone on the playground; or

(E) Any child that is left alone in a vehicle.

(c) Any serious injury or incident, as defined in OAR 414-205-0010(30) within 5 calendar days after the occurrence. This does not include:

(A) Injuries for which a child is evaluated by a professional as a precaution;

(B) Injuries for which first aid is administered at the facility, but no further treatment by a medical professional is warranted; or

(C) Medical events due to routine, ongoing medical issues, such as asthma or seizures.

(d) Any damage to the building that affects the provider's ability to comply with these requirements, within 48 hours of the occurrence.

(e) Any animal bites to a child within 48 hours of occurrence.

(26) The written emergency plan must be given to parents of children in care.

(27) The Child Care Licensing Division may notify parent(s) or guardian(s) of children under 12 months of age enrolled in the registered family child care home of any valid non-compliance with regulations for safe sleep included in OAR 414-205-0090(11).

414-205-0040 The Provider and Other Persons in the Home

(1) The registered provider and any substitute provider shall:

(a) Be at least 18 years old,

(b) Have competence, sound judgment and self-control when working with children, and

(c) Be mentally, physically and emotionally capable of performing duties related to child care.

(2) No one shall have access to child care children who has demonstrated behavior that may have a detrimental effect on a child. Residents of the home are considered to have access to the child care children even if they are not generally at home during child care hours.

(3) The applicant and other residents of the home 18 years of age or older must be enrolled in CCLD's CBR prior to the issuance of a registration. Residents of the home who are under 18 years of age must be enrolled in the Registry by their 18th birthday.

(4) The provider must receive confirmation from CCLD that an individual 18 years of age or over, is enrolled or conditionally enrolled in the CBR before the individual can:

(a) Reside on the premises;

(b) Stay overnight on the premises for longer than 14 consecutive days, not to exceed a total of 30 days in a calendar year;

(c) Assist the provider; or

(d) Volunteer in the child care program.

(5) Individuals with conditional enrollment in the CBR shall not have unsupervised access to children.

(6) If additional information is needed to assess a person's ability to care for children or to have access to children, CCLD may require references, an evaluation by a physician, counselor, or other qualified person, or other information.

(7) Any visitor to the home or other adult who is not enrolled in the CBR may not have unsupervised access to children.

(8) The provider, substitutes and other individuals that are required to be enrolled in the CBR must maintain current enrollment in the CBR at all times while the registered family child care license is active.

(9) Individuals whose CBR enrollment has been revoked, denied or suspended, may not live in the home; be on the premises during child care hours; or have contact with child care children.

(10) If any person, who is enrolled in the CBR, has been charged with, arrested for, or a warrant is out for any of the crimes which CCLD has determined indicate behavior which may have a detrimental effect on a child, with final disposition not yet reached, registration may be denied or suspended until the charge, arrest, or warrant has been resolved if the person continues to operate, be employed in or reside in the home, or have access to children in the home.

(11) The provider shall have a written plan to ensure that individuals who are not enrolled or conditionally enrolled in the CBR and are on the child care premises shall not have unsupervised access to children.

(12) The provider shall maintain a log of arrival and departure times of all individuals 18 and older who are not enrolled or conditionally enrolled in the CBR and enter the home while child care children are present, excluding persons authorized to drop off and pick up a child care child.

(13) Prior to substituting for the provider, a caregiver must:

(a) Be familiar with the requirements for registration and agree to comply with them;

(b) Be enrolled in the CBR;

(c) Comply with all the requirements placed on the provider, except those in OAR 414-205-0055(1)(a), (2)(c), (3)(c);

(d) Have current certification in first aid and infant and child cardiopulmonary resuscitation (CPR). The certifications must be current while the caregiver is substituting for the provider. CPR training must have practical hands-on instruction. CPR courses that involve an on-line component with hands-on instruction may be accepted. Strictly online CPR training is not acceptable;

(e) Have completed a minimum of two hours of training on child abuse and neglect that is specific to Oregon law;

(f) Have current food handler's certification, if preparing or serving food to children;

(g) Have completed Introduction to Child Care Health & Safety Training;

(h) Have completed CCLD-approved safe sleep training; and

(i) Complete CCLD-approved child development training.

414-205-0055 Training Requirements

(1) When a person submits a new application for registration as a family child care provider, CCLD shall, prior to approving the registration, receive evidence from the person that the person has:

(a) Completed the Family Child Care Overview session;

(b) A current certification in first aid and infant and child CPR. CPR training must have practical hands-on instruction. CPR courses that involve an on-line component with hands-on instruction may be accepted. Strictly on-line CPR training is not acceptable.

(c) A current food handler certification pursuant to ORS 624.570;

(d) Have completed a minimum of two hours of training on child abuse and neglect that is specific to Oregon law;

(e) Completed Introduction to Child Care Health & Safety Training; and

(f) Completed CCLD-approved safe sleep training.

(2) When a registered family child care provider submits a renewal application, the CCLD shall, prior to approving it, receive evidence from the provider that the provider has:

(a) A current certification in first aid and infant and child CPR. CPR training must have practical hands-on instruction. CPR courses that involve an on-line component with hands-on instruction may be accepted. Strictly on-line CPR training is not acceptable.

(b) A current food handler certification pursuant to ORS 624.570; and

(c) Completed a minimum of ten hours of training during the two years preceding the renewal date. The training must be related to the core knowledge categories in the Oregon Registry. At least six clock hours of the ten hours of training must be in child development or early childhood

education. A training on recognizing and reporting child abuse and neglect will be accepted after five years (and every five years thereafter) as part of the ten clock hours of training required for licensing, but will not be accepted as part of the required child development training hours.

(d) Completed CCLD approved health and safety training.

(A) CCLD will accept duplicate training one additional time if it is a Set 2 (intermediate) or Set 3 (advanced) training or above as described by the Oregon Center for Career Development in Childhood Care and Education; and it is not taken within the same license period.

(B) The following core knowledge categories are accepted for the child development and early childhood education requirement: Diversity (D), Family and Community Systems (FCS), Human Growth and Development (HGD), Health Safety and Nutrition (HSN), Learning Environments and Curriculum (LEC), Observation and Assessment (OA), Special Needs (SN), and Understanding and Guiding Behavior (UGB).

(3) When a person submits a reopen application, the CCLD shall, prior to approving it, receive evidence from the individual that the individual has:

(a) A current certification in first aid and infant and child CPR. CPR training must have practical hands-on instruction. CPR courses that involve an on-line component with hands-on instruction may be accepted. Strictly on-line CPR training is not acceptable.

(b) A current food handler certification pursuant to ORS 624.570; and

(c) Documentation that individual has ten hours of training related to the Oregon Registry core knowledge categories since the individual's last active child care license was issued. If the individual was previously licensed for less than two years, the training requirements will be prorated as follows: 2.5 hours of training for each six months of the previous license period. A training on recognizing and reporting child abuse and neglect will be accepted again after five years (and every five years thereafter) as part of the ten clock hours of training required for licensing, but will not be accepted as part of the required child development training hours.

(d) CCLD will accept duplicate training one additional time if it is a Set 2 (intermediate) or Set 3 (advanced) training or above as described by the Oregon Center for Career Development in Childhood Care and Education; and it is not taken within the same license period.

(e) Completed CCLD approved health and safety training.

(f) Completed CCLD approved safe sleep training. If the reopen is the result of an address change, the person must complete the CCLD approved safe sleep training by January 1, 2019.

(4) While the registered family child care license is active, the provider must maintain current certification in first aid, infant and child CPR, food handler training, and must complete one hour of training in the category of Health, Safety & Nutrition (HSN) during each year of the two-year license period.

(5) After September 30, 2022, staff members must complete CCLD-approved child development training within 90 days of employment unless the training was completed previously.

(6) Notwithstanding OAR 414-205-0040(13)(d), 414-205-0055(1)(b), 414-205-0055(2)(a), 414-205-0055(3)(a), an online-only CPR certification obtained between March 24, 2020 and June 30, 2022 will be accepted to meet the training requirement until the certification expires.

(7) All staff must complete CCLD-approved child development training by December 31, 2022, or within 90 days of hire, whichever is later.

414-205-0065 Children in Care

(1) A family child care provider may care for a maximum of 10 children. This includes:

(a) All child care children, as defined in OAR 414-205-0010(4);

(b) The provider's own children, including foster children, age 9 years or younger;

(c) Any other children age 12 years or younger for whom the provider is responsible; and

(d) Any child(ren) age 17 years or younger, including the provider's own children, foster children, child care children or other children for whom the provider is responsible, with special needs or disabilities who require a level of care that is above normal for the child's age.

(2) Of the 10 children in care, the provider may care for:

(a) A maximum of six children preschool age or younger, of which only two children may be under 24 months of age.

(b) Four school-age children, in addition to the six children preschool-age or younger.

(c) More school-age children if there are fewer than six children preschool-age or younger, as long as there are no more than 10 children in the home at any one time.

(3) Other children, including but not limited to relatives, neighborhood children or friends of the provider's children, are included in the maximum number of 10 children allowed in care if present in the child care home during operating hours on a regular basis or if present on an occasional basis without being directly supervised by the child's parent or other adult who is not also caring for child care children.

(4) No child younger than 6 weeks of age can be in care in a family child care home. This does not include the provider's child(ren).

414-205-0075 Supervision of Children

The provider or a substitute provider is responsible for the children in care. At all times the provider or substitute provider must:

(1) Be within sight or sound of all children;

(2) Be aware of what each child is doing;

(3) Be near enough to children to respond when needed;

(4) Be physically present when there are children under the age of 36 months playing outside; and

(5) Be physically present when kindergarten-age or younger children are playing outside, unless the outside play area is fully fenced and hazard free.

414-205-0085 Guidance and Discipline

(1) The provider must have a written policy on guidance and discipline of child care children. The policy must be simple and understandable to the child, the parent(s) and to substitute providers.

(2) The written guidance and discipline policy must be given to all parents.

(3) The guidance and discipline policy shall:

(a) Provide for positive guidance, redirection and the setting of clear boundaries; and

(b) Be designed to help the child develop self-control, self-esteem and respect for others.

(4) Only providers and substitutes shall provide guidance or discipline to child care children.

(5) Guidance and discipline shall be fair, consistently applied, timely and appropriate to the behavior and age of the child. Positive statements or redirection of behaviors shall be used.

(6) The following behaviors by caregivers are prohibited:

(a) Using any form of corporal punishment, including, but not limited to: hitting, spanking, slapping, beating, shaking, pinching or other measures that produce physical pain, or threatening to use any form of corporal punishment;

(b) Using inappropriate forms of restraints, including, but not limited to, tying or binding;

(c) Using non-prescription chemicals for discipline or to control behavior;

(d) Yelling harshly or using profane or abusive language;

(e) Using mental or emotional punishment, including, but not limited to: name calling, ridicule or threats;

(f) Confining a child in an enclosed area (e.g. a locked or closed room, closet or box);

(g) Withdrawal or the threat of withdrawal of food, rest or bathroom opportunities;

(h) Punishing a child for toileting accidents or for refusing to eat food;

(i) Engaging in any form of public or private humiliation, rejecting, terrorizing, neglecting or corrupting a child or any form of emotional abuse; and

(j) Requiring a child to remain silent or inactive for excessive periods of time or removing a child from activities or the group for excessive periods of time.

(7) Parental request or permission to use any form of behavior listed in subsection (6) of this rule, does not give the provider or substitute provider permission to do so.

414-205-0090 Program of Activities

(1) The provider must give the children's needs first priority, assuring that they get adequate care and attention.

(2) Providers must make available activities, materials, and equipment for both indoor and outdoor play that provide a variety of experiences geared to the ages and abilities of the child(ren).

(3) The children's activities must allow choice and develop skills based on each child's age and abilities.

(4) A balance of active and quiet play must be provided, both indoors and outdoors.

(5) The provider must have routines for eating, napping, diapering and toileting, with flexibility to respond to the needs of each child.

(6) An individual bed, mat or cot with individual bedding appropriate to the season shall be provided at nap time for each toddler and preschool-age child in the home and for each school-age child who wants to rest.

(a) Family beds or sofas may be used with individual bedding appropriate to the season.

(b) If the parent(s) so request, siblings may share the same bed.

(c) The upper level of bunk beds shall not be used for children under ten years of age.

(d) The upper level of bunk beds may be used for children ten years or older if the bed rail and safety ladder are in place.

(7) Child care children shall not be exposed to more than two hours of screen time per day. All media exposure must be developmentally and age appropriate.

(8) Throughout the day, each infant and toddler shall receive physical contact and individual attention (e.g., being held, rocked, talked to, sung to, and taken on walks inside and outside the home).

(9) The provider must have routines for eating, napping, diapering and toileting, with flexibility to respond to the needs of each child.

(10) Infants shall have a variety of appropriate infant toys stimulating to the senses.

(11) The following safe sleep practices must be followed:

(a) Each infant shall sleep in a crib, portable crib, bassinet or playpen with a clean, non-absorbent mattress. All cribs, portable cribs, bassinets and playpens must comply with current Consumer Product Safety Commission (CPSC) standards;

(b) Bassinets may only be used until the infant is able to roll over on their own;

(c) Each mattress shall:

(A) Fit snugly; and

(B) Be covered by a tightly fitting sheet;

(d) A clean sheet shall be provided for each child;

(e) Infants must be placed on their backs on a flat surface for sleeping;

(f) While on the child care premises, if an infant falls asleep in a place other than their crib, portable crib, bassinet or playpen, the provider must immediately move the infant to an appropriate sleep surface;

(g) No child shall be routinely left in a crib, portable crib, bassinet or playpen except for sleep or rest;

(h) There shall be no items in the crib, portable crib, bassinet or playpen with the infant, except a pacifier (e.g. bottles, toys, pillows, stuffed animals, blankets, bumpers);

(i) Swaddling or other clothing or covering that restricts the child's movement is prohibited;

(j) Clothing or items that could pose a strangulation hazard (e.g. teething necklaces, pacifier attachments, clothing drawstrings) are prohibited; and

(k) Car seats are to be used for transportation only. Children who are asleep in a car seat must be removed upon arrival to the home and placed in an appropriate sleep surface.

414-205-0100 Health

(1) All caregivers shall take appropriate precautions to prevent shaken baby syndrome and abusive head trauma.

(2) The home must be a healthy environment for children.

(a) No person shall smoke or carry any lighted smoking instrument, including an e-cigarette or vaporizer in the family child care home or within ten feet of any entrance, exit, or window that opens or any ventilation intake that serves an enclosed area, during child care hours or when child care children are present. No person shall use smokeless tobacco in the family child care home during child care hours or when child care children are present. No person shall smoke, carry any lighted smoking instrument, including an e-cigarette, or vaporizer or use smokeless tobacco in motor vehicles while child care children are passengers.

(b) No one shall consume alcohol on the family child care home premises during child care hours or when child care children are present. No one shall be under the influence of alcohol on the family child care home premises during child care hours or when child care children are present.

(c) Notwithstanding OAR 414-205-0000(5), no one shall possess, use or store illegal controlled substances on the family child care home premises. No one shall be under the influence of illegal controlled substances on the family child care home premises.

(d) Notwithstanding OAR 414-205-0000(5), no one shall grow or distribute marijuana on the premises of the registered family child care home. No adults shall use marijuana on the registered family child care home premises during child care hours or when child care children are present.

(e) No adult under the influence of marijuana shall have contact with child care children.

(f) Notwithstanding OAR 414-205-0000(5), marijuana plants shall not be grown or kept on the registered family child care home premises.

(g) All medical marijuana must be kept in its original container if purchased from a dispensary and stored under child safety lock. All medical marijuana derivatives and associated paraphernalia must be stored under child safety lock.

(h) Effective July 1, 2015, all marijuana, marijuana derivatives and associated paraphernalia must be stored under child safety lock.

(i) There must be at least one flush toilet and one hand-washing sink available to children. Steps or blocks must be available to ensure children can use the toilet and sink without assistance. Drinking water for preparing food, infant formula, drinking or cooking shall not be obtained from bathroom sinks or diaper changing sinks.

(j) The room temperature must be at least 68°F during the hours the child care business is conducted.

(k) Rooms occupied by children must have a combination of natural and artificial lighting.

(l) Floors must be free of splinters, large unsealed cracks, sliding rugs and other hazards.

(3) First aid supplies and a chart or handbook of first aid instructions shall be maintained in one identified place and kept out of reach of children.

(a) The first aid supplies shall include: band aids, adhesive tape, sterile gauze pads, soap or sealed antiseptic towelettes or solution to be used as a wound cleaning agent, scissors, disposable plastic gloves for handling blood spills, a solution for disinfecting after a blood spill, a sanitary temperature taking device and CPR mouth guards.

(b) A first aid kit and a copy of each child's emergency medical information including a medical release form shall be taken any time the caregiver is transporting child care children or taking child care children on field trips.

(4) Infants must be laid on their backs on a flat surface for sleeping.

(5) Illness:

(a) A provider shall not admit or retain in care, except with the written approval of the local health office, a child who:

(A) Is diagnosed as having or being a carrier of a child care restrictable disease, as defined in Oregon Health Authority administrative rule; or

(B) Has one of the following symptoms or combination of symptoms or illness;

(i) Fever over 100°F, taken under the arm;

(ii) Diarrhea (more than one abnormally loose, runny, watery or bloody stool);

(iii) Vomiting;

(iv) Nausea;

(v) Severe cough;

(vi) Unusual yellow color to skin or eyes;

(vii) Skin or eye lesions or rashes that are severe, weeping or pus-filled;

(viii)Stiff neck and headache with one or more of the symptoms listed above;

(ix) Difficulty breathing or abnormal wheezing;

(x) Complaints of severe pain.

(b) A child, who, after being admitted into child care, shows signs of illness, as defined in this rule, shall be separated from the other children, and the parent(s) notified and asked to remove the child from the provider's home as soon as possible.

(6) If a child has mild cold symptoms that do not impair his/her normal functioning, the child may remain in the provider's home and the parent(s) notified when they pick up their child.

(7) Parents must be notified if their child is exposed to an outbreak of a communicable disease.

(8) Prescription and non-prescription medication shall only be given to a child if the provider has written authorization from the parent, as required in OAR 414-205-0130(2)(b).

(9) Prescription and non-prescription medications must be properly labeled and stored.

(a) Non-prescription medications or topical substances must be labeled with the child's name.

(b) Prescription medications must be in the original container and labeled with the child's name, the name of the drug, dosage, directions for administering, and the physician's name.

(c) Medication requiring refrigeration must be kept in a separate, tightly covered container, marked "medication," in the refrigerator.

(10) Sunscreen is considered a non-prescription medication and may be used for child care children under the following conditions:

(a) Providers must obtain written parental authorization prior to using sunscreen.

(b) One container of sunscreen may be used for child care children unless a parent supplies an individual container for their child. The sunscreen shall be applied in a manner that prevents contaminating the container.

(A) Parents must be informed of the type of product and the sun protective factor (SPF).

(B) Parents must be given the opportunity to inspect the product and active ingredients.

(c) If sunscreen is supplied for an individual child care child, the sunscreen must be labeled with the child's first and last name and must be used for only that child.

(d) Providers must reapply sunscreen every two hours while the child care children are exposed to the sun.

(e) Providers shall use a sunscreen with an SPF of 15 or higher and must be labeled as "Broad Spectrum".

(f) Providers shall not use aerosol sunscreens on child care children.

(g) Sunscreen shall not be used on child care children younger than six months.

(h) Child care children over six years of age may apply sunscreen to themselves under the direct supervision of the provider or staff member.

(11) Parents must be informed daily of any medications given to their child or any injuries their child has had.

(12) A written care plan must be developed at the time of enrollment, or when an allergy is identified for each enrolled child who has an allergy that poses a threat to the child's health, safety, and well-being. The plan must include instructions regarding the allergen and steps to be taken to avoid the allergen; signs and symptoms of an allergic reaction; and a detailed treatment plan including the names, doses, and methods of prompt administration of any medication in response to allergic reactions.

(a) The parent must be notified immediately of any suspected allergic reactions or if the child consumed or came in contact with the allergen, even if a reaction did not occur.

(b) If epinephrine is administered, emergency medical services must be contacted immediately, and Child Care Licensing Division must be notified within five calendar days of the occurrence.

(c) All staff involved in care of the child must be trained on the written care plan.

(d) Specific food allergies must be shared with all staff that prepare and serve food.

(e) A list of each child's allergies should be easily accessible for staff but not visible to those who are not parents or guardians of the enrolled child.

(13) The provider must provide or ensure the availability of meals and snacks appropriate for the ages and needs of the children served.

(a) Meals and snacks must be based on the guidelines of the USDA Child Care Food Program.

(b) Foods must be stored and maintained at the proper temperature.

(c) Foods must be prepared and served according to the minimum standards for food handler certification.

(d) Infants must be held or sitting up for bottle feeding. Propping bottles is prohibited.

(e) Children shall not be laid down with a bottle for sleeping.

(14) Children who cannot feed themselves shall be held or, if able to sit alone, fed in an upright position.

(a) Infants up to six months of age shall be held or sitting up in a caregiver’s lap for bottle feeding;

(b) Bottles shall never be propped. The child or a caregiver shall hold the bottle.

(c) Infants no longer being held for feeding shall be fed in a manner that provides safety and comfort.

(15) Children of any age shall not be laid down with a bottle.

(16) Any animal at the family child care home shall be in good health and be a friendly companion for the children in care.

(a) Potentially aggressive animals must not be in the same physical space as the children.

(b) Dogs and cats must be vaccinated according to a licensed veterinarian's recommendations.

(c) Dogs and cats shall be kept free of fleas, ticks and worms.

(17) Animal litter boxes shall not be located in areas accessible to children or areas used for food storage or preparation.

(18) Caregivers must be physically present when children are interacting with animals.

(19) Exotic animals, including, but not limited to: reptiles (e.g. lizards, turtles, snakes) amphibians, monkeys, hook-beaked birds, baby chicks and ferrets are prohibited unless they are housed in and remain in a tank or other container which precludes any direct contact by children. Educational programs that include prohibited animals and are run by zoos, museums and other professional animal handlers are permitted.

(20) Parents must be made aware of the presence of any animals on the premises.

414-205-0105 Testing for Lead in Drinking Water

(1) For purposes of this rule, "drinking water faucet or fixture"

(a) means any plumbing fixture on the premises used to obtain water for drinking, cooking, preparing infant formula, or preparing food; and

(b) does not include any plumbing fixture used to obtain water for handwashing, bathing, or diaper changing.

(2) Water obtained from fixtures identified in subsection (1)(b) of this rule cannot be used for drinking, cooking, preparing infant formula, or preparing food.

(3) Initial Testing

(a) Any provider with an active registration as of September 30, 2018 must test each drinking water faucet or fixture by November 30, 2018.

(b) The following providers must test each drinking water faucet or fixture for lead in the water prior to being eligible to receive a license from CCLD:

(A) Any provider with a pending registration application as of September 30, 2018; and

(B) Any provider applying for registration on or after September 30, 2018, including, but not limited to, initial applications, renewal applications, and reopen applications.

(c) A provider identified in (3)(a) or (b) does not need to conduct the initial testing if:

(A) All drinking water faucets or fixtures have been tested within 6 years prior to the effective date of this rule; and

(B) The testing was conducted in accordance with the requirements of subsection (5) of this rule.

(d) A provider identified in subsection (3)(a) must submit all test results to CCLD no later than November 30, 2018. The test results must be accompanied by a written statement that identifies the location of each drinking water faucet or fixture tested.

(e) A provider identified in (3)(b) must submit test results to CCLD within 10 calendar days of the facility receiving the results from the laboratory. The test results must be accompanied by a written statement that identifies the location of each drinking water faucet or fixture tested.

(4) Ongoing Testing

(a) After a provider conducts the initial testing under subsection (3) of this rule, the provider must test all drinking water faucets or fixtures at least once every six years from the date of the last test.

(b) All test results obtained in accordance with subsection (4)(a) of this rule must be submitted to CCLD within 10 calendar days of the provider receiving the results from the laboratory. The test results must be accompanied by a written statement that identifies the location of each drinking water faucet or fixture tested.

(5) Sampling and Testing

(a) All sample collection and testing must be in accordance with the Environmental Protection Agency (EPA)'s 3Ts for Reducing Lead in Drinking Water in Schools and Child Care Facilities, Revised Manual from October 2018, adopted by reference.

(b) All testing must be performed by a laboratory accredited by the Oregon Laboratory Accreditation Program according to standards set under OAR chapter 333, division 64 in effect as of September 30, 2018.

(c) If a facility does not use any of the on-site plumbing fixtures to obtain water for drinking, cooking, preparing infant formula, or preparing food, the provider must:

(A) Submit a written statement to CCLD identifying the alternative source of water and confirming that the provider does not use any on-site plumbing fixtures for drinking, cooking, preparing infant formula, or preparing food; and

(B) Notify CCLD in writing if the alternative source of water changes.

(6) Results

(a) If test results show that water from any drinking water faucet or fixture has 15 parts per billion (ppb) or more of lead, the provider must:

(A) Prevent access to that drinking water faucet or fixture immediately after receiving the test results; and

(B) Continue to prevent access to that drinking water faucet or fixture until mitigation in completed in accordance with subsection (6)(b) of this rule.

(b) Following receipt of test results showing that water from any drinking water faucet or fixture has 15 parts per billion (ppb) or more of lead, the provider must:

(A) Submit a corrective action plan to CCLD for approval within 60 days of receiving the test results. The corrective action plan must identify an appropriate mitigation strategy in accordance with Module 6 of the EPA's 3Ts for Reducing Lead in Drinking Water in Schools and Child Care Facilities, Revised Manual from October 2018, adopted by reference; and

(B) Implement the mitigation method within 30 days of approval by CCLD.

(7) Recordkeeping and Posting

(a) The provider must keep a copy of the most recent lead test results on-site at all times.

(b) The provider must post the most recent lead test results summary provided by CCLD in an area of the facility where the summary can be clearly viewed by parents. The provider must post the lead test results summary immediately after receiving the summary from CCLD.

(8) Providers must follow the routine practices identified in Module 6 of the EPA's 3Ts for Reducing Lead in Drinking Water in Schools and Child Care Facilities, Revised Manual from October 2018, adopted by reference, at all times.

414-205-0110 Safety

(1) Children shall be protected from fire and safety hazards. Providers must have the following protections in place:

(a) All exposed electrical outlets in rooms used by preschool or younger children must have hard-to-remove protective caps or safety devices installed when the outlet is not in use.

(b) Extension cords shall not be used as permanent wiring;

(c) All appliance cords must be in good condition;

(d) Multiple connectors for cords shall not be used;

(e) A grounded power strip outlet with a built-in over-current protection may be used;

(f) A stable barrier shall be installed to prevent children from falling into hazards, including, but not limited to: fireplaces, heaters and woodstoves that are in use when child care children are present;

(g) A secure barrier shall be placed at the top and/or bottom of all stairways accessible to infants and toddlers;

(h) Smoke alarms and carbon monoxide detectors shall be:

(A) Installed on each floor level of the home, unless the floor is not under the direct control of the provider, and in any area where children nap;

(B) Maintained in operating order; and

(C) Tested monthly to ensure they are in working order. The provider must document each test;

(i) There shall be at least one 2-A-10 BC-rated fire extinguisher on each floor of the home, unless the floor is not under the direct control of the provider.

(A) Fire extinguishers on floors where child care occurs must be designated on the floor plan required in OAR 414-205-0035 and either mounted or stored along the primary evacuation route. Fire extinguishers must be easily accessible, and visible.

(B) If fire extinguishers are stored in a cabinet or closet, they must be mounted and there must be a sign indicating that the fire extinguisher is located inside.

(j) Obstructions, including furniture, storage of supplies, or any other items shall not be placed in a manner that blocks access to the cabinet or closet.

(k) The provider must inspect the fire extinguishers monthly and the inspection must be documented.

(l) Firearms, BB guns, pellet guns and ammunition kept under lock, with ammunition stored and locked separately. Firearms, BB guns and pellet guns must remain unloaded;

(m) Cleaning supplies, paints, matches, lighters, and plastic bags kept under child-safety lock;

(n) Other potentially dangerous items, such as medicine, drugs, sharp knives and poisonous and toxic materials kept under child-safety lock;

(o) Flammable and combustible materials:

(A) Shall be stored in the original container or a safety container;

(B) Must not be stored within 4 feet of furnaces, other flame or heat-producing equipment, or fuel-fired water heaters, and

(C) If over one gallon, kept in an unattached storage building.

(p) If any preschool age or younger children are in care, poisonous plants must be kept out of the reach of children; and

(q) All clear glass panels in doors clearly marked at child level.

(2) All floor levels used by children must have access to two useable exits, as defined in OAR 414-205-0010(35), to the outdoors.

(a) If a basement is used for child care purposes, the requirement for two useable exits may be met by one of the following:

(A) A sliding glass door or swinging door to the outside and a window that meets the definition of a useable exit; or

(B) A window which meets the definition of a useable exit and an internal stairway to ground level that has unobstructed and direct access to the outdoors.

(b) If a window, which meets the definition of a useable exit, is used:

(A) Steps must be placed under the window to allow children to exit without assistance; and

(B) The window must be kept in good working condition.

(c) If a window used as an exit has a window well, a mechanism must be in place to allow children to exit the window well.

(d) The provider must complete a daily inspection to ensure that evacuation routes are clear and usable exits, including doors and escape windows, are operable.

(3) Second floors (does not apply to providers registered continuously at the same address before 2009, unless the provider has moved the child care license to a new residence):

(a) Child care children shall not sleep on the second floor or above;

(b) Care shall not be provided for infants and toddlers on the second floor or above;

(c) Night care shall not be provided on the second floor or above;

(d) Children may be allowed on the second floor to use the bathroom if the only bathroom is on the second floor;

(e) Care can be provided for preschool and school-age children on the second floor or above, if:

(A) There are two staircases to the ground level and all children are mobile enough to exit safely; or

(B) The designated fire marshal has approved the use of the upper floor.

(4) Fire drills shall be practiced monthly at varying times during child care operation hours:

(a) Fire drills must include a drill including using an alternate evacuation route at least once per year;

(b) An evacuation drill must be conducted when requested by CCLD during an announced visit.

(c) The provider must have an alert method (for example, a smoke alarm, strobe light, loud bell or whistle) to warn the occupants of the home of an emergency or drill;

(d) The provider must demonstrate efforts to complete full evacuation of staff and child care children within three minutes. If unable to evacuate within three minutes, the provider must engage in additional efforts including one or more of the following:

(A) Using evacuation cribs, strollers/buggies, or wagons;

(B) Providing staff with additional training;

(C) Giving children specific tasks to complete during the drill, such as holding onto a safety walking rope;

(D) Providing children with clear and direct instructions that are age-appropriate about what is happening during the drill;

(E) Reviewing and editing emergency plans and evacuation routes;

(F) Conducting additional evacuation drills;

(G) Incorporating fire safety planning into curriculum; and

(H) Other strategies identified by CCLD.

(5) One other aspect of the emergency plan in addition to the monthly fire drills shall be practiced at least every other month and must follow the recording requirements listed in OAR 414-205-0130.

(6) The provider must have a written plan for evacuating and removing children to a safe location in an emergency. The plan must be posted in the home, familiar to the children and the caregivers, and practiced at least every other month and must include:

(a) Procedures for notifying parents or other adults responsible for the children, of the relocation and how children will be reunited with their families;

(b) Procedures to address the needs of individual children, including infants and toddlers, children with special needs and children with chronic medical conditions;

(c) An acceptable method to ensure that all children in attendance are accounted for;

(d) Procedures for handling natural disasters (e.g. fire, earthquake, etc.) and man-caused events, such as violence at a child-care facility;

(e) Procedures in the event that children must shelter-in-place or if the child-care home must be locked-down so that no one can enter or leave; and

(f) Procedures for maintaining continuity of child care operations.

(7) A telephone in working condition must be in the family child care home.

(a) Parents must be given the telephone number so they can contact the provider if needed.

(b) Emergency telephone numbers for fire, ambulance, police and poison control and the provider's home address must be posted in a visible location.

(8) The building, grounds, water supply, and toys, equipment and furniture used by children must be maintained in a hazard-free condition.

(a) Broken toys, furniture and equipment must be removed from areas accessible to children.

(b) Both the exterior and interior of the home must be maintained in good repair.

(c) Painted surfaces must be in good condition, both inside and outside, to avoid exposing children to lead paint.

(d) The provider shall report to CCLD any damage to the building that affects the provider's ability to comply with these requirements, within 48 hours after the occurrence.

(9) If a caregiver is transporting children, the caregiver must have a valid driver's license and proof of appropriate insurance.

(10) The number of children transported shall not exceed the number of seat belts or child safety systems available in the vehicle.

(11) The provider must take precautions to protect children from vehicular traffic. The provider shall:

(a) Require drop off and pick up only at the curb or at an off-street location protected from traffic.

(b) Assure that any adult who supervises drop-off and loading can see and assure that children are clear of the perimeter of all vehicles before any vehicle moves.

(12) The following vehicles may be used to transport child care children:

(a) A vehicle manufactured to carry fewer than ten passengers;

(b) A school bus or a multi-function school activity bus;

(c) A vehicle manufactured to carry ten or more passengers that was manufactured in 2010 or after; or

(d) A vehicle manufactured to carry ten or more passengers that was manufactured before 2010, with the following conditions:

(A) Travel speed may not exceed 50 mph; and

(B) The vehicle must have an annual safety inspection by a garage, dealership or auto repair shop. Proof of inspection must be on the form provided by the Department of Early Learning and Care or on a form provided by the inspector which contains the same information.

414-205-0120 Sanitation

(1) Pre-mixed sanitizers and disinfectants that are EPA registered and meet Oregon Health Authority criteria may be used in all areas of the home per manufacturer instructions.

(2) Caregivers and children shall wash their hands with soap and warm running water:

(a) After using the toilet;

(b) After using the toilet;

(c) After assisting someone with toileting;

(d) Before handling food;

(e) Before and after eating; and

(f) Before assisting with feeding.

(3) Caregivers and children must either wash their hands with soap and warm running water or use hand sanitizer with alcohol content between 60-95%:

(a) After wiping the nose;

(b) After coughing or sneezing;

(c) After outdoor activities; and

(d) After touching animals, other than dogs and cats, or handling pet toys.

(4) Hand sanitizer must be stored out of reach of children.

(5) Hand sanitizer shall not be used on children under 24 months of age.

(6) Application of hand sanitizer on older toddlers and preschool-aged children must be supervised by an adult.

(7) When hand washing is not possible, e.g. on field trips and on the playground, moist towelettes and hand sanitizer with alcohol content between 60-95% shall be used together.

(8) All toys, equipment and furniture used by children must be cleaned, rinsed and sanitized regularly and whenever soiled.

(9) Diaper changing surfaces must be either:

(a) Non-absorbent and easily disinfected;

(b) Disposed of after each use; or

(c) Laundered after each use.

(10) The diaper changing area shall be located so that hand washing can occur immediately after diapering without contacting other surfaces or children.

(11) The building and grounds must be maintained in a clean and sanitary manner.

(12) All garbage, solid waste, and refuse must be disposed of regularly, in a safe and sanitary manner.

(13) Bio-contaminants including but not limited to bodily fluids and blood shall be disposed of in a manner that prevents exposure to children.

(14) The home's water supply must be safe to drink.

(15) Wading pools are prohibited for wading.

414-205-0130 Record Keeping

(1) The following records, except those specified in OAR 414-205-0105(7)(a), shall be kept by the provider for at least one year. These records shall be available at all times to CCLD:

(a) Information from the parent(s) for each child at the time of admission:

(A) Name and birth date of the child;

(B) Any chronic health problem(s), including allergies, the child has;

(C) Date child entered care;

(D) Names, work and home telephone numbers and addresses, and the work hours of the parent(s) or legal guardian(s);

(E) Name and telephone number of person(s) to contact in an emergency;

(F) Name and telephone number of person(s) to whom the child may be released;

(G) The name of the school attended by the child care child; and

(H) Name, address and telephone number of the child's doctor and dentist.

(I) Health history of any problems that could affect the child’s participation in child care.

(b) Daily attendance records, including dates each child attended and arrival and departure times for each day. Times shall be recorded as the child care children arrive and depart;

(c) Medications administered, including the child's name, and the date and time of dosage and the dosage amount;

(d) Injuries to a child; and

(e) The provider shall maintain a written record of each emergency evacuation drill showing:

(A) The date and time;

(B) The exits used;

(C) The number and age range of children evacuated;

(D) The total number of people in the home at the time of the drill;

(E) The amount of time taken to evacuate the home;

(F) The name of the person conducting the drill, and

(G) The alert method used.

(2) The provider must have a written statement from the parent(s) regarding whether or not the provider is authorized to:

(a) Obtain emergency medical treatment for a child;

(b) Administer medications to a child;

(c) Take a child on a field trip or other activity outside the home or participate in any water activity; and

(d) Transport a child to or from school or allow a child to bus or walk to or from school or home.

414-205-0140 Night Care

A provider providing night care must:

(1) Have a written plan for the care, mutually agreed upon by the parent(s) and the provider;

(2) Have a written plan for emergency situations occurring during the night, including how the evacuation route will be illuminated;

(3) Be awake for the arrival and departure of each child in night care; and

(4) Follow all other applicable Registration rules.

414-205-0150 Exceptions to Rules

(1) A provider may request an exception to a rule.

(a) An exception must be requested on a form provided by CCLD;

(b) The provider must provide a justification for the requested exception and an explanation of how the provider will ensure, through safeguards or other conditions, the health, safety and well-being of the children.

(2) The provider must be in compliance with the rule as written until the provider has received approval for the exception from CCLD.

(3) In instances where care that is subject to registration, as defined in subsection (2) of rule 414-205-0000, will not be provided in the provider's own residence, the applicant/provider must request and receive approval for an exception prior to providing care at that location. In all respects, the location must appear and be arranged as a residence.

(4) No exception to a rule shall be granted unless the health, safety, and well-being of the children are ensured.

(5) An exception is valid only for the specified dates for which it is issued.

(6) The granting of an exception to a rule shall not set a precedent, and each request shall be evaluated on its own merits.

414-205-0160 Complaints

(1) The Child Care Licensing Division will respond to complaints made on registered and illegal providers, and will cooperate with law enforcement or other agencies in response to allegations of child abuse or noncompliance.

(a) Any and all complaints may result in an on-site assessment at the family child care home;

(b) All serious complaints will result in an on-site assessment at the family child care home;

(c) Complaints alleging child abuse or neglect will be reported to the Department of Human Services Child Welfare (DHS) or local law enforcement agencies.

(2) New applicants for registration will be given a copy of CCLD's complaint procedures at the time of the on-site health and safety review. The complaint procedures are also available upon request.

414-205-0170 Suspension, Denial, Revocation, Findings Reviews and Civil Penalties

(1) A provider has the right to a review of any finding made by CCLD. New applicants for registration will be given a copy of CCLD's findings review procedures at the time of the on-site inspection. Information on the CCLD findings review process will be in complaint letters. The CCLD findings review procedures are also available upon request.

(2) The Child Care Licensing Division may immediately, and without prior notice, suspend the child care registration when, in the opinion of CCLD, such action is necessary to protect the children from physical or mental abuse or a substantial threat to health, safety or well-being. Such action may be taken before an investigation is completed.

(3) A provider whose registration has been suspended must immediately notify, verbally or in writing, all parents of the suspension.

(4) A provider whose registration has been suspended must immediately provide CCLD with all names, work and home telephone numbers and addresses of the parent(s) or legal guardian(s) for each child.

(5) A provider whose registration has been suspended must post the suspension in the home where it can be viewed by parents and others for the duration of the suspension.

(6) If necessary to protect children, CCLD may give public notice of denial, suspension or revocation action taken. The type of notice will depend on individual circumstances.

(7) If the provider does not request a hearing and the conditions which resulted in suspension have not been corrected, the registration shall be revoked.

(8) Registration may be denied or revoked if a registered family child care home fails to meet requirements, provide CCLD with information requested, allow an inspection, correct deficiencies, or is operated or maintained in a manner which is harmful to the health, safety or well-being of children in care.

(9) A registered family child care home whose registration has been denied or revoked must immediately notify all parents of the closure and shall post a notice of the closure where it can be viewed by parents and others. The notice shall remain posted for a minimum of 2 weeks.

(10) The provider has the right to appeal any decision to deny, suspend, or revoke the registration, subject to the provisions of Chapter 183, Oregon Revised Statutes.

(11) Any action taken by CCLD to deny, suspend, or revoke registration may be reported to the Department of Human Services, USDA Child Care Food Programs and child care resource and referral system.

(12) A provider whose registration has been denied for cause (e.g. health and safety concerns, criminal activity or child abuse and neglect involvement) or revoked for cause shall not be eligible to reapply for 5 years after the effective date of the closure.

(13) If any person, who is enrolled in the CBR, has been charged with, arrested for, or a warrant is out for any of the crimes which CCLD has determined indicate behavior which may have a detrimental effect on a child, with final disposition not yet reached, registration may be denied or suspended or revoked until the charge, arrest, or warrant has been resolved if the person continues to operate, be employed in or reside in the home, or have access to children in the home.

(14) Registration may be denied, suspended or revoked if an individual listed in OAR 414-205-0040 has a child abuse and neglect history or an open child abuse and neglect or law enforcement case that would disqualify the individual from the CBR.

(15) Violations of these rules or terms and conditions of certification under these rules may be subject to a civil penalty up to $750 per violation.

(16) Whenever the Child Care Licensing Division (CCLD) investigates an alleged complaint at a registered facility, or a facility that may be operating in violation of the requirements of ORS 329A.250 through 329A.450, CCLD shall:

  (a) Provide technical assistance as appropriate;

  (b) Send written notice of the complaint visit to the facility with a finding of valid, unable to substantiate, or invalid; and

  (c) CCLD shall assess whether additional legal actions are appropriate, including but not limited to civil penalties, denials, revocations or suspensions, depending upon:

    (A) Numbers of previous violations of the same rule; or

    (B) Circumstances surrounding the rule violation.

(17) For a serious violation, as defined in OAR-414-205-0010(31), a provider may be subject to a civil penalty not to exceed $750 for each violation.

(18) For a non-serious violation, a provider may be subject to a civil penalty of $250 for each violation.

(19) Each day that a child care facility is operating in violation of any of the rules and conditions of certification is a separate violation of the rules.

(20) An individual or entity that provides child care subject to licensing in a home or facility that is not certified with the Child Care Licensing Division , may be subject to a civil penalty not to exceed $1,500 per day of operation of the uncertified facility.

(21) Notwithstanding the Child Care Licensing Division ’s (CCLD) decision to impose a civil penalty for one or more rule violations, CCLD may also take action to deny, suspend or revoke a certification for the same rule violation or violations.

(22) The provider has the right to appeal any decision to impose a civil penalty, subject to the provisions of chapter 183, Oregon Revised Statutes.

(23) Failure to pay a civil penalty in which the Child Care Licensing Division has issued a final order by default or a final order after a contested case hearing shall be grounds for denial or revocation of the facility’s certification.

Oregon Department of Early Learning and Care

General Rules for All

CHILD CARE FACILITIES

Child Care Licensing Division
Oregon Department of Early Learning and Care (DELC)
General Rules for All Child Care Facilities
Effective December 7, 2023

These rules apply to all child care facilities including certified centers, family child care homes, exempt child care providers, recorded programs, regulated subsidy programs, and those who may be conducting unlawful care. This ruleset covers the processes and policy which governs how CCLD/DELC proceeds in regulatory matters such as investigations, unlawful care, allowable exempt care, when a provider may be represented by their union in a contested case hearings process, or procedures for when an individual is prohibited from providing care. These rules help to provide transparency and a road map for providers and the public in understanding how the agency proceeds in these important matters. These rules are reflective of the regulatory authority given to DELC in ORS 329A and ORS 326.430.

Oregon Administrative Rules (OAR) Chapter 414, Division 075
General Rules for Child Care Facilities
December 7, 2023

Department of Early Learning and Care
Child Care Licensing Division

This copy of the rule book is available on the Department of Early Learning and Care website. Additional copies may be downloaded at any time.

For more information or the latest updates, visit: www.oregon.gov/delc

Questions? Email CCLD.Customerservice@delc.oregon.gov
Call 1-800-556-6616

You are entitled to language assistance services and other accommodation at no cost. If you need help in your language or other accommodations, please contact the Child Care Licensing Division at 503-947-1400.

DEPARTMENT OF EARLY LEARNING AND CARE

Chapter 414, Division 075

General Rules for All Child Care Facilities

Table of Contents:

414-075-0000 Applicability of Rules 39
414-075-0010 Definitions 40
414-075-0130 Complaints and Investigations 44
414-075-0230 Exempt Prohibition, Unlawful Care, Civil Penalties.....47
414-075-0250 Operating Hours and Care Not Requiring a License.....49
414-075-0300 Union Representation in Contested Case Hearings 51

414-075-0000 Applicability of Rules

(1) Except as otherwise specified, these rules apply to all licensed license-exempt, exempt, and unlicensed child care providers and facilities including:

- **(a)** All licensed facilities including registered family child care homes, certified family child care homes, certified child care centers, and certified school-aged child care centers;.
- **(b)** License-exempt child care and exempt care facilities that are required by statute to only employ or contain individuals who are enrolled in the Central Background Registry, including but not limited to, recorded programs and subsidized care facilities;
- **(c)** Exempt care facilities providing or claiming to be providing care defined to not be child care in ORS 329A.250(4)(b)(A) through (H); and
- **(d)** Facilities, providers, and persons providing or alleged to be providing unlawful care as defined in OAR 414-075-0230.

(2) These rules supplant and do not supersede the rules contained in Chapter 414, Divisions, 61, 175, 180, 205, 305, 310, 350, 400, 425, and 450 and pertaining to specific child care program types. In the event of a conflict between such rules and these rules, these rules control.

(3) If any court of law finds that any clause, phrase, or provision of these rules is unconstitutional or invalid for any reason whatsoever, this finding shall not affect the validity of the remaining portion of these rules.

414-075-0010 Definitions

The following words and terms, when used in OAR 414-075-0000 through 414-075-0300, have the following meanings:

(1) **"Certified Family Child Care Home"** or "CF" means a child care facility operated in a building designed as a single family home or other dwelling that is certified to care for no more than 16 children at any one time.

(2) **"CCLD"** means the Child Care Licensing Division in the Department of Early Learning and Care.

(3) **"Central Background Registry"** or "CBR" means CCLD's registry of individuals who have been approved to be associated with a child care facility in Oregon pursuant to ORS 329A.030 and OAR 414-061-0000 through 414-061-0120.

(4) **"Child Care Child"** means any child six weeks of age or older and under 13 years of age, or a child with special needs under the age of 18 who requires a level of care that is greater than that of their same aged peers, for whom a licensed or subsidized child care facility, or a facility for which a license is required, or a license-exempt child care facility as defined in this rule, has supervisory responsibility in the temporary absence of the parent.

(5) **"Child Care Facility"** means any facility that provides child care to children, including a certified child care center, certified school-aged child care center, certified family child care home, and registered family child care home. It may include those known under a descriptive name, such as nursery school, preschool, kindergarten, child play school, before and after school care, or child development center, and does not include license-exempt child care or exempt care, as defined in this rule. This term applies to the total child care operation. It includes the physical setting, equipment, staff, provider, program, and care of children. It does not include a license-exempt child care facility as defined in this rule.

(6) **"Child Abuse or Neglect"** means as defined as "abuse" in ORS 419B.005 including but not limited to physical abuse, emotional abuse, sexual abuse, negligent treatment or maltreatment, and threat of subjecting a child to a substantial risk of harm to the child's health or welfare.

(7) **"Child Protective Services**" or "CPS" means the program as defined in OAR 413-015-0115.

(8) **"Civil Penalty"** means a fine imposed by CCLD for violation of one or more applicable rules or statutes.

(9) **"Complaint"** means written or verbal information received from any source that a facility is providing or has provided care in a manner potentially in violation of a state law or administrative rule within the authority of CCLD.

(10) **"Employee"** means an individual engaged to work full or part time in a facility. This includes all caregivers and any individual who functions other than as a caregiver for children.

(11) **"Exempt Care"** is care provided by a caregiver that is within an exception to the definition of "child care" in ORS 329A.250(b)(A) through (H) or as otherwise provided by rule (see OAR 414-075-0250(3) and is not described in ORS 329A.250(4)(a)(A) or (B).

(12) **"Exempt Care Facility"** means a facility that provides only exempt care as defined in this rule.

(13) **"Exempt Prohibited Individual"** means an individual who is by law prohibited to provide child care or exempt care, except to children related to the individual by blood or marriage within the fourth degree of sanguinity as determined by civil law, as defined in ORS 329A.252(1)(a) through (e) and described in OAR 414-075-230. An exempt prohibited individual is ineligible for enrollment in the Central Background Registry except for limited enrollment as described in 414-061-0020(27)(b).

(14) **"Facility"** means an individual, group of individuals, or entity that is caring for or is alleged to be providing care for any child younger than 13 years or younger than 18 years with special needs who requires a level of care that is greater than that of their same-aged peers for whom the individual, group of individuals, or entity has responsibility in the temporary absence of the parent, legal guardian or custodian .

(15) **"Family"** for purposes of determining if children are from the same family or if a child is in care by a member of the child's extended family as referred to in OAR 414-075-0250 means a group of individuals related by blood, marriage or adoption, or individuals whose functional relationships, such as residing together, are similar to those found in such associations.

(16) **"Finding"** means a written determination by CCLD staff with respect to information received, a complaint, or an observed noncompliance with a requirement in ORS 329A.030 or ORS 329A.250 through 329A.500 or rules adopted by the Early Learning Council pursuant to ORS 329A.030 or ORS 329A.250 through 329A.500.

(17) **"For Cause"** means that the reason for a denial or nonrenewal of a license or enrollment in the CBR or the revocation of a license or removal from the CBR was based on a determination that:

(a) With respect to a CBR application or enrollment, an individual was found not suitable after a review of history, including but not limited to criminal, child abuse and neglect, negative foster care certification, or negative adult protective services history, and of information related to the history; or

(b) With respect to a license, the licensee failed or fails to meet licensing requirements and is or has operated in a manner which is harmful to the health and safety or wellbeing to children. For purposes of this rule, "harmful" means posing a risk of or actually causing physical, emotional, or mental damage to child care children, and includes but is not limited to any violation of:

  (A) A requirement designed to protect children from physical hazards;

  (B) Applicable guidance and discipline rules involving inappropriate punishment;

  (C) A requirement to exclude from the facility a person who has demonstrated behavior that may have a detrimental effect on children;

  (D) A requirement to report suspected child abuse or neglect;

  (E) A requirement involving safe sleep for infants; or

  (F) Applicable supervision rules resulting in:

    (i) A child escaping the facility;

    (ii) A child being left behind from or on a field trip without supervision; or

    (iii) A child being injured when the injury could have been prevented with proper supervision.

(18)**"Investigation"** means the collection and review of information received by CCLD of prompted by an allegation of a rule or statute violation including but not limited to a cross-report of a child abuse and neglect received by law enforcement or the ODHS, or other information received by CCLD. An investigation includes but is not limited to a tandem investigation as defined in this rule and includes any activities as listed in ORS 329A.390(7) or OAR 414-075-0130.

(19)**"Licensed"** means the state of having an active registration or certification issued by CCLD.

(20)**"License"** means an authorization from CCLD to operate a registered family child care home, a certified family child care home, a certified child care center, or certified school-age child care center.

(21)**"Licensee"** means an individual to whom a registration or certification has been issued by CCLD.

(22)**"License-Exempt Child Care"** means child care that is not required to be licensed because it is provided as described in ORS 329A.250(5)(a) through (i).

(23)**"License-Exempt Child Care Facility"** means a facility that provides only license-exempt child care as defined in this rule.

(24)**"Noncompliance**" means being in violation of a requirement contained in statute or rule for the applicable type of facility.

(25)**"Observed Noncompliance"** means a noncompliance observed by CCLD staff including information observed in a facility's records.

(26)**"Occasional care"** means care that is provided for no more than 70 days in any calendar year for the purpose of the supervision and guidance by a person, sponsor, or organization not ordinarily engaged in providing child care for children, as defined in this rule, for not more than 70 days, or for enrichment activities that coincide with the non-school days in the Oregon public school system.

(27)**"ODHS"** means the Oregon Department of Human Services.

(28)**"Ordinarily engaged in providing care"** means that the facility has been issued a current child care certification or registration, is a license-exempt child care facility as defined in this rule or represents or advertises to the public as available to provide care for children on an ongoing basis.

(29)**"OTIS"** means the Office of Training, Investigations and Safety in ODHS.

(30)**"Parent"** means a parent, custodian, or guardian exercising physical care and having legal custody of the child.

(31)**"Person"** means an individual human being, an entity to whom CCLD has issued a record or a license to operate a certified child care center or certified school-aged child care center, or an individual or entity operating a license exempt child care facility.

(32)**"Premises"** means the physical location used or alleged to be used by a facility to provide care subject to regulation or investigation by CCLD, including all indoor and outdoor areas not directly used for child care.

(33)**"Provider"** means an individual in whose name a license or approval to receive payment for subsidized care is issued.

(34)**"Recorded Program"** means a facility to whom CCLD has issued a record to operate a preschool or school-aged recorded program.

(35)**"Registered Family Child Care Home**" or "RF" or "Registered Facility" means in a the residence of a provider to whom CCLD has issued a license to operate a facility in the family living quarters pursuant to these rules and OAR 414-205-0000 to 414-205-0170.

(36) **"Regular operating hours"** means the days and hours of operation as requested by a child care facility and approved by CCLD, except:

(a) A registered family child care facility that has not requested and obtained approval by CCLD of regular operating hours:

(A) Providing night care is considered to have operating hours of 24 hours per day, seven days a week, if providing night care.

(B) Not providing night care is considered to have operating hours of 5:00 am to 9:00pm, Monday through Friday.

(b) Regular operating hours also include any time that a child enrolled in or regularly attending a certified or registered facility is present at the facility including before or after the approved operating hours, unless:

(A) The child resides in the facility; or

(B) The child is present at a registered or certified family child care home for a social event as described in OAR 414-075-0250(2)(b).

(37) **"Sensitive Allegations"** means allegations that in the judgment of CCLD staff should not be discussed in the hearing of child care children who are present and old enough to understand a conversation that would necessarily include discussion of sexual activity or sex abuse or any individual's personal medical information or medical or disability diagnoses.

(38) **"Staff"** means, as applicable:

(a) For a facility, the provider and any other individuals employed in the facility regardless of compensation, including a volunteer who is in the facility for more than a single activity; or

(b) For CCLD, any individual employed by the agency or authorized to act on behalf of the agency, including but not limited to investigators, licensing specialists, managers, or other employees.

(39) **"Subsidized Care"** means the care, supervision and guidance on a regular basis of a child, unaccompanied by a parent, guardian or custodian, provided to during a part of the 24 hours of a day, paid for in whole or in part by public funds administered by the Department of Early Learning and Care.

(40) **"Subsidized Care Facility"** means any facility that provides subsidized care to children, including a day nursery, nursery school, child care center, certified, registered or exempt family child care home or similar unit operating under any name, for which payment for child care is made by the Department of Early Learning and Care.

(41) **"Superseding Finding"** means a finding in a findings letter that replaces a finding included in a previously issued letter.

(42) **"Tandem Investigation"** means an investigation conducted by CCLD jointly with representatives from partner agencies, including but not limited to ODHS and its divisions or units.

(43) **"Unlawful Care"** means care provided by a person or entity who is not licensed or recorded when a license or record is required pursuant to ORS 329A.255, ORS 329A.280 or ORS 329A.330, and as described in OAR 414-075-0230.

(44) **"Unlicensed"** means the status of providing care without an active license issued by CCLD including while providing license-exempt child care or exempt care.

414-075-0130 Complaints and Investigations

(1) Unless already open regarding the same allegations, a complaint will be opened based on CCLD's receipt of any of the following concerning licensed facilities, recorded programs, or unlicensed facilities alleged to be providing care for which a license or record is required:

(a) A cross-report of child abuse or neglect from law enforcement agencies, ODHS, or OTIS, including a report that was closed at screening;

(b) A report or information from or forwarded by another state or local agency or governmental unit;

(c) A report or information from facility staff; or

(d) Information received from the general public.

(2) CCLD will encourage an individual or entity making a complaint to provide CCLD with their identity and contact information, subject to ORS 329A.390(4) prohibiting CCLD from disclosing the name, address, or other identifying information about the individual or entity that made the complaint, except as follows:

(a) CCLD may share contact information for the individual or entity that made a complaint within the CCLD or with any agency or individual performing a tandem investigation with CCLD related to the complaint for purposes of confirming factual information or obtaining additional information; and

(b) CCLD may disclose to an individual that it received a cross-report from law enforcement agencies, ODHS, or OTIS when such cross report is the child abuse or neglect history that has triggered a review of the individual's suitability for enrollment in the Central Background Registry, but may not disclose the name, address or other identifying information about the individual or entity that made the report to law enforcement, ODHS, or OTIS.

(3) CCLD may investigate any complaint that alleges a violation of a health and safety requirement received regarding any facility, including licensed facilities, recorded programs, and subsidized care facilities, as provided by these rules when the allegations indicate noncompliance with a provision in ORS 329A.250 to 329A.500 or a provision in Oregon Administrative Rules Chapter 414, Divisions, 175, 180, 205, 305, 310, 350, 400, 425 or 450.

(4) CCLD may investigate any complaint that a facility as defined by these rules and including but not limited to individuals providing or claiming to be providing exempt care, is providing unlawful car as described in OAR 414-075-0230.

(5) CCLD may investigate any facility for which CCLD has reason to believe or has received information that child care is being provided without a required certification, registration, or record.

(a) For purposes of determining if the child care requires a certification, registration, or record, CCLD may request the facility to provide information concerning the identities of the children in care and how they are related to the caregiver and to each other.

(b) If the facility does not provide CCLD with the information concerning the identities and relationships of the children in care as requested, CCLD may assume that care for a group of more than three children requires a certification, registration, or record from CCLD.

(6) CCLD may conduct an in-person visit at any reasonable time of any facility to investigate a complaint.

(a) An in-person visit is at a reasonable time at any time at least one child care child is in care at a licensed facility or is alleged to be in care at the facility.

(b) An in-person visit is at a reasonable time at any time CCLD reasonably believes a child may be in care at an unlicensed facility.

(7) CCLD staff may, but is not required to, use any method of investigation authorized by ORS 329A.390(7). In conducting an investigation CCLD staff may:

(a) Make one or more visits to the facility under investigation to inspect the premises.

(b) Receive, take, record, document, and review evidence.

(c) Interview staff, volunteers, parents of child care children, or other individuals who have relevant information.

(d) Request documents related to the matter under investigation.

(e) Inspect and observe the operations of the facility.

(f) Investigate collaboratively with partners.

(g) Take the depositions of witnesses, including the person under investigation, in the manner prescribed by law for depositions in civil actions;

(h) Compel the appearance of witnesses, including the person under investigation, in the manner prescribed by law for appearances in civil actions;

(i) Require answers to interrogatories;

(j) Compel the production of books, papers, accounts, documents or testimony that pertains to the matter under investigation; and

(k) Issue subpoenas.

(8) A registered, certified, recorded, or subsidized care facility must provide records or other documentation, and allow CCLD access to the facility for the purpose of conducting an investigation as required or permitted by ORS 329A.390 or these rules. CCLD or the Department as applicable:

(a) May revoke for cause or deny for cause renewal of a registration, certification, record, or approval of subsidized care facility if access to the facility or its records has not been permitted.

(b) May obtain a search warrant to obtain access to a facility as provided by ORS 329A.410 when access has not been permitted.

(c) May revoke for cause or deny for cause renewal of a registration, certification, record, or approval of subsidized care facility when access was denied and later permitted only pursuant to a search warrant.

(9) If the provider denies CCLD access to the premises or to facility staff for purposes of conducting an investigation of a complaint, CCLD may reach a valid finding based solely on other evidence independently obtained and that reasonably could have been corroborated or contradicted by information from the visit or interviews that the provider did not allow.

(10) A provider or licensee must provide truthful, complete, and accurate information to CCLD staff in connection with any application, records or reports including attendance records, written or verbal communication, inspection, visit, or investigation.

(a) When an applicable rule requires information to be provided immediately, it must be provided during the visit or if not in connection with a visit within 24 hours of CCLD's request.

(b) Information not required by rule to be provided immediately must be provided within 48 hours of CCLD's request for it to be considered in the investigation. CCLD may issue a finding without reviewing information provided more than 48 hours after CCLD's request.

(11) An individual who is questioned by CCLD in connection with an investigation of a complaint may refuse to answer specific questions or provide documents by stating that the refusal is based on the privilege against self-incrimination, including when the answer to the question or the documents, if produced by the individual, would furnish a link in the chain of evidence needed for a criminal prosecution. CCLD is not required to inform an individual of this rule prior to questioning the individual.

(12) CCLD may conduct compliance verification visits to a facility for the purposes of confirming compliance or continued compliance.

(13) CCLD may conduct an unannounced complaint or compliance verification visit at any reasonable time. When deemed appropriate in the judgment of CCLD staff, including when the complaint contains sensitive allegations as defined in these rules, CCLD may choose to conduct interviews or portions of interviews during the complaint or compliance verification process by telephone, video-conference, or email in addition to an in-person visit.

(14) The facility must prioritize children's needs during any in-person visit and may not rely on the presence of CCLD staff at the facility to justify noncompliance with any requirement.

(15) CCLD staff are not required to assist the facility in achieving compliance in response to an observed noncompliance and CCLD staff:

(a) May not be counted by the facility for purposes of meeting ratio requirements.

(b) May not contact parents to pick up children for purposes of achieving compliance with capacity, ratio, or group size or composition requirements.

(c) May suggest to the facility specific actions to achieve compliance, including sending children home to achieve compliance with capacity, ratio, or group size or composition requirements.

(d) May document whether a facility took immediate steps to achieve compliance or refused to do so.

(16) The CCLD staff assigned to investigate a complaint must review and consider all evidence and documentation timely submitted by the facility as required by 414-075-0130(10) prior to issuing findings.

(17) When the requirements for issuance of an emergency order of suspension or conditions are met, CCLD may take action prior to completion of an investigation based on facts confirmed in the pending investigation.

(18) A CCLD investigation of a complaint is ongoing until CCLD staff has issued findings with respect to all potential noncompliances alleged in the complaint or identified in the investigation.

(19) Unless the facility has closed before CCLD issues a finding on a complaint, CCLD staff may issue one of the following findings with respect to each complaint investigated by CCLD, and may issue separate findings with respect to each potential regulatory or statutory violation based on the fact(s) confirmed in the investigation:

(a) Valid, when a reasonable person could conclude the noncompliance occurred based on the evidence; or

(b) Invalid, when a reasonable person could not conclude that the noncompliance occurred based on the evidence; or

(c) Unable to Substantiate, when a reasonable person could not decide whether the noncompliance occurred because of conflicting evidence or because information is not available.

(20) An individual may become an exempt prohibited individual if they surrender their registration, certification or CBR enrollment during a CCLD investigation. See OAR 414-075-0230.

(21) If a facility has closed before CCLD has issued a finding on a complaint because of a voluntary surrender or lapse of the license including because a timely renewal application was withdrawn, CCLD may complete the investigation and issue findings or may close the investigation as incomplete. If CCLD has closed an investigation as incomplete, CCLD may resume the investigation at any time including if the licensee applies to reopen the license or for another license.

(22) A CCLD investigation for which findings on all allegations have been issued to the facility will be reopened only as follows:

(a) CCLD will reopen an investigation if it has information that was not considered in the initial investigation that if confirmed could change the outcome, and CCLD has determined that reopening the investigation is necessary.

(b) CCLD must notify the facility when it has reopened an investigation.

(c) CCLD staff conducting the reopened investigation must issue superseding findings following the investigation that is reopened whether or not the outcome of the original finding is changed.

(23) A child care facility may not interfere, discourage, or attempt to prevent a parent, legal guardian, current or former employee or volunteer from disclosing information to CCLD, law enforcement, any other entity with legal or regulatory authority over the facility, or to a child's parent concerning allegations of any of the following as provided by ORS 329A.348:

(a) Abuse or mistreatment of a child in the child care facility;

(b) Violations of licensing requirements;

(c) Criminal activity at the facility;

(d) Violations of state or federal laws, or

(e) Any practice that threatens the health and safety of a child in the child care facility.

(24) Interference with good faith disclosures as described in section (23) of this rule includes:

(a) Terminating or threatening to terminate care of a child if the parent or legal guardian of child discloses the information; or

(b) Asking a parent or legal guardian of a child or, employee or volunteer to sign a nondisclosure or similar agreement prohibiting the disclosure of the information; or

(c) Communicating to or training a current or former staff, volunteer, parent, or legal guardian that they may not or should not disclose information.

414-075-0230 Exempt Prohibition, Unlawful Care, Civil Penalties

(1) An individual is an exempt prohibited individual as a result of any of the following circumstances as provided by ORS 329A.252:

(a) The individual has had their registration, certification, or record denied for cause or revoked for cause.

(b) The individual is not enrolled in the Central Background Registry because of removal for cause or denial for cause.

(c) The individual voluntarily surrendered their child care license or enrollment in the Central Background Registry during a CCLD investigation or after CCLD has given the individual notice of an administrative action against the individual or the individual's facility.

(d) The individual is suspended from the Central Background Registry.

(e) The individual is licensee of a license that is suspended.

(f) The individual has been issued a final order to cease and desist by CCLD after a contested proceeding or that has become effective because the individual did not request a hearing.

(2) An exempt prohibited individual may not provide child care or exempt care as defined in these rules except for their own children or children related to them within the fourth degree of sanguinity as determined by civil law.

(3) An exempt prohibited individual:

(a) Remains an exempt prohibited individual for five years after the most recent dates of a circumstance resulting in the status as described in section (1) (a) through (c) and (f) of this rule and continues to be an exempt prohibited individual unless and until re-enrolled in the Central Background Registry.

(b) Is no longer an exempt prohibited individual if the sole basis for the status is a suspension as described in section (1) (d) or (e) of this rule and CCLD has withdrawn the suspension by final order.

(c) May be enrolled in the Central Background Registry with a limited enrollment as defined by OAR 414-061-0020(27)(b) if meeting all requirements for a limited enrollment.

(4) "Unlawful Care" means care provided by the following to a child not related to the person within the fourth degree of sanguinity as determined by civil law:

(a) By a person who is not licensed or recorded when a license or record is required pursuant to ORS 320A.255, ORS 329A.280 or ORS 329A.330.

(b) By an exempt prohibited individual as provided by ORS 329A.252(2)(b).

(c) By a person who is not licensed or recorded when a license or record is required pursuant to ORS 320A.255, ORS 329A.280 or ORS 329A.330.

(d) By a person enrolled in the CBR under a limited enrollment:

(A) As defined in OAR 414-061-0020(25)(a) when the care violates a restriction or condition agreed to by the person; or

(B) As defined in OAR 414-061-0020(25)(b) when providing care while having unsupervised access to a child care child who is not the child of the person.

(e) In the home of a child, to children all from only one family in addition to children who reside with the person, or to no more than three children in addition to children who reside with the person, by an individual who is not enrolled in the CBR and was issued a founded or substantiated disposition for child abuse:

(A) On or after January 1, 2017 involving a child who died or suffered serious injury as defined in ORS 161.015.

(B) On or after September 1, 2019 and in the last seven years, when the founded or substantiated disposition of a child abuse or neglect report involved any child for whom the individual was providing care in the following settings:

(i) In a licensed or license-exempt child care facility as defined in these rules;

(ii) By a babysitter or other person in the home of the child;

(iii) By a person related to the child within the fourth degree of sanguinity as determined by civil law;

(iv) By a person who cares for children from only one family in addition to children who reside with the person;

(v) By a person who cares for no more than three children in addition to any children who reside with the person; or

(vi) By a person who is a member of the child's extended family, as determined by CCLD on a case-by-case basis.

(5) A person who has provided unlawful care as defined in these rules, including but not limited to unlawful care by an exempt prohibited individual, may be subject to a civil penalty of not more than $1,500 per violation.

(a) CCLD may provide a warning rather than assess a civil penalty for a person's first instance of providing unlawful care if CCLD determines the person was not aware that the care was unlawful care as described in section (4) of this rule or that a license was required.

(b) The civil penalty assessed against a person determined by final order to have provided unlawful care on a single day will be $750 for the first instance of unlawful care for which a penalty is assessed.

(c) Each additional day that person provides unlawful care is a separate violation for which CCLD may assess a civil penalty of not more than $1,500 for each day the person is determined by final order on default or after a contested case hearing to have provided unlawful care.

414-075-0250 Operating Hours and Care Not Requiring a License

(1) A facility may provide care without a license if the facility:

(a) Provides care in the home of the child by a babysitter or other person;

(b) Is the child's parent, legal guardian or custodian;

(c) Is related to the child by blood or marriage within the fourth degree;

(d) Is a member of the child's extended family unit, as determined by CCLD on a case-by case basis;

(e) Provides only occasional care as defined in these rules;

(f) Is a provider of medical services;

(g) Provides care for children from only one family, in addition to any children who reside with the person;

(h) Provides care for three or fewer children, in addition to any children who reside with the person;

(i) Provides care for preschool-age children that is primarily educational for 4 hours or less per day and where no preschool-age child is present at the center for more than 4 hours per day;

(j) Provides care for school-age children that is not intended for child care purposes and is primarily a single enrichment activity, such as swimming lessons, dance lessons, tutoring, music lessons, sports practice, or any single class in any subject, where no child attends for more than 8 hours per week;

(k) Provides group athletic or social activities sponsored by or under the supervision of an organized club or hobby group. This exclusion applies only to the time engaged in the group athletic or social activities;

(l) Is operated by a school district, charter school, political subdivision of this state, or a government agency;

(m) Operates as a parent cooperative for no more than 4 hours a day and:

(A) Care is provided on a rotating basis by parents that are members of the cooperative; and

(B) Are overseen by a board of directors responsible for developing written program policies and procedures that are shared with all members.

(n) Provides care while the child's parent for the child remains on the premises and is engaged in an activity on-site, and:

(A) The facility informs the parent that the facility's program is not licensed by the state;

(B) Activities in which the parent is engaged do not include work; and

(C) Caregivers are always able to contact the parent.

(o) Provide youth development activities, as defined in ORS 329A.250(14), to school-age children during hours that school is not in session and which does not take the place of a parent's care.

(2) Care provided to children who do not reside in a licensed facility requires a license if provided by a licensed facility during the licensed facility's regular operating hours, as defined in these rules.

(a) Care provided to a child who is enrolled in a licensed facility who arrives before or remains after the facility's regular operating hours and is in care for any part of the facility's regular operating hours requires and is subject to all requirements of the facility's license.

(b) A child who ordinarily receives care at a registered or certified child care home facility and is present at the facility outside of the facility's regular operative hours for a social event is not subject to the requirements of the facility's license only if the facility has informed the parent that that the facility is not providing child care and that the care is not subject to license requirements.

(A) Care described in paragraph (2)(b) of this rule is not eligible for payment from the Employment Related Day Care program.

(B) Care for a child who is enrolled in a licensed child care is subject to all requirements of the facility's license if any of following exist regardless of whether the facility has informed the parent that the care is not subject to license requirements:

(i) The parent pays the facility for the care;

(ii) The child is in care for the purpose of providing care, supervision and guidance while the child's parent is unavailable due to work, school, or another activity; or

(iii) The child is in care outside the facility's regular operating hours on a regular basis. A facility regularly providing care outside its regular operating hours must notify CCLD and request approval to change the operating hours to include the days and hours that care is regularly provided.

(3) Care may be provided without a license:

(a) At the location of a license-exempt child care facility, as defined in these rules, by a caregiver operating or employed by a license-exempt child care facility, for their own child or any child who resides with the caregiver before, during, or after their hours of employment at the license-exempt child care facility, as allowed by the license-exempt child care facility.

(b) By a person, including a person who operates an exempt care or license-exempt child care facility, providing occasional care as defined in these rules during summer, winter and spring school breaks if the facility is ordinarily closed during such breaks. A licensed facility may not provide occasional care during periods that the facility is closed unless the license has been surrendered or has expired.

(c) In the following combinations of exempt care:

(A) Care by a babysitter or other person in the home of the child, in addition to one or more children who reside with the babysitter or other person.

(B) Care by a child's parent, legal guardian, or custodian, in addition to children who are related to the child's parent, legal guardian, or custodian by blood or marriage within the fourth degree as determined by civil law.

414-075-0300 Union Representation in Contested Case Hearings

(1) A labor union representative who is not an attorney holding an active license issued by the Oregon State Bar may represent the following providers in a contested case hearing conducted by the CCLD or the Department:

(a) The licensee under a registered or certified family child care home license; or

(b) An individual who provides subsidized care in the home of the individual or the home of the child that is not required to be licensed.

(2) When representing a provider, a labor union representative may present evidence, examine and cross-examine witnesses and make arguments relating to the:

(a) Application of statutes and rules to the facts in the contested case;

(b) Actions taken by CCLD in the past in similar situations;

(c) Literal meaning of the statutes or rules at issue in the contested case;

(d) Admissibility of evidence; and

(e) Proper procedures to be used in the contested case hearing.

(3) A labor union representative may not make legal argument on behalf of the provider.

(a) "Legal argument" does not include arguments listed in section (2)(a) through (e) of this rule.

(b) "Legal argument" includes arguments on:

(A) The jurisdiction of CCLD to hear the contested case;

(B) The constitutionality of a statute or rule or the application of a constitutional requirement to the CCLD; and

(C) The application of court precedent to the facts of the particular contested case proceeding.

(4) Union representatives must read and be familiar with the Code of Conduct for Non-Attorney Representatives at Administrative Hearings, which is maintained by the Oregon Department of Justice and available on its website at: https://www.doj.state.or.us/wp-content/uploads/2017/06/code_of_conduct_oah_contested.pdf (Amended October 1, 2011).

(5) If the administrative law judge determines that statements or objections made by the labor union representative appearing under section (1) of this rule involve legal argument as defined in this rule, the administrative law judge shall provide a reasonable opportunity for counsel for the provider to appear and present argument at the hearing or to file written legal argument within a reasonable time after conclusion of the hearing.

(6) A labor union representative must obtain and provide to CCLD and to the Office of Administrative Hearings (OAH) the written authorization of the provider to being represented by the labor union representative prior to beginning representation or communicating with CCLD or the OAH on behalf of the provider regarding the contested case.

(7) An authorized labor union's representation of a provider in a hearing may include the activities described in section (3) of this rule and:

(a) Communicating with CCLD without the presence of the provider regarding procedural matters including but not limited to scheduling;

(b) Assisting the provider in preparing and filing proposed exhibits and witness list;

(c) Making stipulations of fact;

(d) Agreeing or objecting to the admissibility of evidence based on relevance; or

(e) Being with the provider during any settlement negotiations including by telephone or video-conference.

(8) An authorized labor union's representation of a provider in a hearing may not include:

(a) Entering into binding settlement agreements on behalf of the provider;

(b) Issuing subpoenas for witness attendance at the hearing.

(A) If a provider determines that a necessary witness is unwilling to testify, the provider or an authorized labor union representative may request that CCLD subpoena the witness by submitting a written request including the name, phone number, physical address, and description of anticipated testimony to CCLD no less than 30 calendar days before the date scheduled for hearing.

(B) CCLD is not required to subpoena witnesses on behalf of the provider unless CCLD agrees that the testimony of the witness is necessary for a full and fair hearing.

(C) CCLD is not required to subpoena witnesses on behalf of the provider for a hearing on an emergency order suspending a license or Central Background Registry enrollment or imposing a condition on a license.

(D) CCLD will notify the provider or authorized labor union representative of whether it will issue a subpoena pursuant to the request within 10 business days of receipt of the request.

(E) If CCLD does not agree to subpoena the witness as requested pursuant to this subparagraph, the provider may retain counsel to represent them in the hearing and issue the subpoena.

(9) A provider who is or becomes represented by an attorney in a contested case hearing may not be simultaneously represented by an authorized labor union representative, and the notification of representation by an attorney shall operate to rescind any prior authorization for a labor union representative to represent the provider.

(10) Sections (3) through (8) of this rule do not apply to an attorney who appears as counsel for the provider in a contested case before CCLD or the Department.